

## Manish Kumar Agrawal v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 18 February 2019 · Writ-C No. 5521 of 2019 · Writ-C No. 5521 of 2019 ·  
**Writ dismissed on alternative remedy under Supply Code CGRF/Ombudsman.**

### HEADNOTE

A writ seeking mandamus to grant an electricity connection without installation of a transformer was dismissed. Counsel could not show any provision conferring that entitlement or identify the relevant provisions of the Electricity Act, 2003. Disputes relating to generation, transmission and distribution of electricity lie under the Electricity Supply Code, 2005 before the District Grievance/Redressal Forum, with a further remedy before the Ombudsman. The petition was dismissed on the ground of alternative remedy.

### FACTUAL SUMMARY

Manish Kumar Agrawal filed Writ-C No. 5521 of 2019 in the Allahabad High Court seeking a mandamus commanding the State of Uttar Pradesh and the distribution-licensee respondents to grant him an electricity connection without installation of a transformer. The Division Bench of Sudhir Agarwal and Rajendra Kumar-IV, JJ. heard counsel for the petitioner, the State, and counsel for respondents 3 to 5. When asked, petitioner's counsel could not identify any provision conferring that entitlement, nor the relevant provisions of the Electricity Act, 2003.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

alternative-remedy-cgrf-ombudsman

#### HOLDING

Where a question or dispute arises in generation, transmission or distribution of electricity, the remedy is under the Electricity Supply Code, 2005: the person may approach the District Grievance/Redressal Forum constituted in every district, and if dissatisfied, the Ombudsman. A writ for mandamus to grant a connection without installing a transformer, with no provision shown, was dismissed on that alternative remedy. ¶ 4-5

**FLAG** Court named District Grievance/Redressal Forum and Ombudsman under Electricity Supply Code, 2005 without numbering clauses 6.5/6.8.

### PRINCIPLE TAGS

**alternative-remedy-supply-code-cgrf-ombudsman** Writ for an electricity connection without a transformer dismissed; petitioner relegated to the District Grievance/Redressal Forum and then the Ombudsman under the Electricity Supply Code, 2005. ¶ 4-5

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO AN ELECTRICITY CONNECTION WITHOUT INSTALLATION OF A TRANSFORMER

Counsel could not show any conferring provision; the Court dismissed on alternative remedy without deciding the merits. ¶ 3-5